JET NO. 6

ARIZONA COURT OF APPEALS

DIVISION ONE

HAVASUPAI TRIBE of the Havasupai Reservation, a federally-recognized Indian Tribe, Plaintiff-Appellant, v. ARIZONA STATE UNIVERSITY BOARD OF REGENTS; THERESE ANN MARKOW; KEVIN ZUERLEIN Defendants-Appellees.	No. 1 CA-CV 07-0454 Maricopa County Superior Court No. CV2005-013190

JOINT ANSWERING BRIEF

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Tribe was final, giving the Court jurisdiction under A.R.S. § 12-2101(B). (Order dated September 18, 2007.)

STATEMENT OF FACTS

I. Allegations of the Complaint.

The controversy surrounds research that Professors Markow and Martin, among others, did in connection with the Havasupai people. In the operative pleading, the Second Amended Complaint, the Tribe alleged generally that Professor Markow obtained blood and handprint samples for Tribal members under false pretenses and used them for purposes beyond the scope of the permission given. (R.A. 75 [Opening Brief Appendix H].) The following are allegations taken from the Second Amended Complaint.

In 1989, ASU Professors Martin and Markow designed a research project to study diabetes among the Havasupai people (the "Diabetes Project"). (*Id.*, ¶ 27.) Martin and Markow discussed using Havasupai blood samples to study schizophrenia, but neither the Tribe nor its people were informed that blood samples would be used for any purpose other than the diabetes study. (*Id.*, ¶¶ 29, 73.)[3]

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[3] While the issues on appeal do not involve the merits of the Tribe's claim or the truth of its allegations, it is noteworthy that this very basic part of the Plaintiffs' claims does not go unimpeached. In Motions for Summary Judgment against both the Tribe and Tilousi, Dr. Markow testified by Declaration that study participants were informed that the research had a wider purpose: they were read a script that included the following statement:

(continued) . . .

Professors Martin and Markow presented the Diabetes Project to the Tribal Council. (*Id.*, ¶ 30.) Under the project, Markow and Martin or their agents would reside in Supai and take as many blood samples as possible. (*Id.*) They misinformed the Council that that the only purpose was a study to help address diabetes among the Havasupai, when in fact they intended to use the samples for other purposes, which they knew would be harmful to the Tribe and its members. (*Id.*) Before Martin and Markow presented their proposal to the Tribal Council, Markow—without the knowledge of the Tribe or its members—had applied for a grant to study schizophrenia among Tribal members. (*Id.*, ¶ 33.)

Based on Martin's and Markow's representations, the Tribe agreed to the Diabetes Project and allowed them to use its health center. (*Id.*, ¶ 31.) In exchange, ASU allowed Tribal members to attend ASU classes for free. (*Id.*, ¶ 32.)

. . . (continued)

> We are conducting research to try to identify factors that cause some of the health problems experienced by the Havasupai and other Native American peoples. *Many of these diseases, such as diabetes, schizophrenia, depression,* are complicated and so we try to look at as many factors as possible. There may be causes that are passed down in families through genes and there may be causes also from different lifestyles and from the environment. Risk factors for many diseases that occur in families can sometimes be identified by tests on genetic material from the blood.

(R.A. 69, Ex. A, ¶¶ 6–8, and Ex. C; R.A. 70, Ex. A, ¶¶ 6–8, and Ex. C [emphasis added].)